

The Claremont City Council held a meeting on Wednesday, January 27, 2021, in the Council Chambers of City Hall and via Zoom.

The meeting was called to order by Mayor Lovett at 6:02 p.m.

Mayor Lovett read the following statement: *This meeting is being conducted in accordance with the provisions of the Governor's Executive Order no. 2020-04 and the emergency meeting provisions of RSA 91-A to permit participation of board members by electronic means. Under the conditions of the current COVID-19 pandemic and the protocols established by the Centers for Disease Control (CDC), it is not reasonably practical for a quorum of this board's members to attend this meeting in person.*

To join the webinar:

<https://us02web.zoom.us/j/81529457408?pwd=dmpEQ1BRNXNibVFUb1dYNU1nWnZlQT09>

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If there is a problem getting through to that number, please call 603-542-7002.

Members of the Council present, including location and who was in the room:

Ward I Councilor Andrew O'Hearne – home, alone

At-Large Councilor Dale Girard – home, alone

At-Large Councilor Erica Sweetser – Council Chambers, Councilor Stone

Assistant Mayor Allen Damren – home, alone

Mayor Charlene Lovett – home, alone

At-Large Councilor Debora Matteau – home, alone

At-Large Councilor Nicholas Koloski – office, alone

Ward II Councilor James Contois – home, alone

Ward III Councilor Jonathan Stone – Council Chambers, Councilor Sweetser

Also present:

Edward Morris, City Manager

NON-PUBLIC SESSION PURSUANT TO RSA 91-A:3,II(a) – PERSONNEL

A motion was made by Mayor Lovett and seconded by Councilor Matteau to enter Nonpublic Session pursuant to RSA 91-A:3,II(a) – Personnel, and to invite Mr. Morris into the session.

Roll call vote:

O'Hearne - yes

Girard - yes

Sweetser - yes

Damren - yes

Matteau - yes

Koloski - yes

Contois - yes

Stone - yes

Lovett - yes

Motion carried 9-0.

Entered nonpublic session at 6:07 p.m.

A motion was made by Councilor Matteau and seconded by Assistant Mayor Damren to exit the Non-Public Session.

Roll call vote:

O'Hearne - yes

Girard - yes

Sweetser - yes

Damren - yes

Matteau - yes

Koloski - yes

Contois - yes

Stone - yes

Lovett - yes

Motion carried 9-0.

Public session reconvened at 6:52 p.m.

A motion was made by Assistant Mayor Damren and seconded by Councilor Matteau to seal these minutes, because it is determined that divulgence of this information likely would affect adversely the reputation of any person other than a member of this board; such minutes to remain sealed unless and until the purpose for which the information discussed has been requested to be sealed no longer applies.

Roll call vote:

O'Hearne - yes

Girard - yes

Sweetser - yes

Damren - yes

Matteau - yes

Koloski - yes

Contois - yes

Stone - yes
Lovett - yes
Motion carried 9-0.

AGENDA CHANGES

None.

MAYOR'S NOTES

Because of the lateness of the hour, Mayor Lovett didn't give any Mayor's Notes.

CITY MANAGER'S REPORT

- **Airport Update-** Here is a brief update on projects underway at the airport:
 - **Airport Terminal Building** is 99% complete.
 - **Master Plan Update** is in the data collection phase.
 - **Apron Project** is 95% completed.
 - **Runway Project** preliminary data is being compiled to include inspection of approximately 3200 feet of storm water drainage and catch basin infrastructure. Pipe failure will be repaired during runway reconstruction project.
 - **Obstruction Removal Project** survey work has been completed on all properties involved.
- **Blight Update** – Over this past year, City Staff has worked on various aspects of blight improvement, focused primarily on the City Council's goal of "Reducing blight by focusing on dilapidated properties and absentee landlords."
 - The City Manager's Neighborhood Improvement through Code Enforcement (NICE) Committee has reviewed the City's Property Maintenance Code and is currently working with the Policy Committee to get this code updated.
 - Completed a tax deed auction with reverter clauses added to each property.
 - Created and implemented the Citizen Concern portal (<https://claremontnh.viewpointcloud.com/categories/1082>).
 - Completed the demolition of 139 Main Street.
- **Strategic Planning Workshop** – Prior to COVID-19, a few City Councilors and City Staff attended a strategic planning workshop. During this workshop, it was discussed that the City should focus on growing the community through creating a healthy housing market, building a positive community culture, and focusing on developing the city center. By using the focus, the City Staff has developed the following future action items:
 - Continued code enforcement to increase the quality of substandard housing
 - Increase efforts to incentivize new quality housing options

- Create a strategic plan to address beautification efforts with emphasis on highly visible areas
 - Work with the Claremont Conservation Commission's campaign and other local partners to address litter in our community
 - Send a few Staff members to training courses on neighborhood improvement
 - Complete the Rethink Pleasant Street redevelopment project
 - Continue efforts to support the redevelopment of the Peterson Mill Project
 - Update online marketing campaign
 - Continue online presence and community pride awareness
- **Bond Update** – We have received our bond for the Pleasant Street and Dispatch upgrade projects, with a true interest cost of 1.58% for the life of the bond. Our bond was sold as a premium bond which, like most things in life, has plusses and minuses.

Details of our Bond:

- Bond amount = \$5.8 Million
- Premium paid = \$713,000 (The largest premium this City has received)
- Principal amount to be repaid by the City = \$5,087,000
- Interest cost \$1,614,710.30
- Total repayment after interest \$6,701,710.30.

The downfall to this is the overall payment that starts at \$453,036.30, which is higher than the bond payment we are retiring, and reduces annually to a final payment of \$255,250.00 in year 20. To keep the payment at or below the retiring bond payment cost, we plan to pay a larger amount of the Water and Sewer portion of the payment in the first few years, to offset any increase.

Councilors agreed to move the rest of the City Manager's Report to after the Legislative Update.

OLD BUSINESS

Legislative Update

1. Discussion with State Legislators

Mayor Lovett welcomed State Senator Suzanne Prentiss, and State Representatives Gary Merchant, John Cloutier, Andrew O'Hearne and Walt Stapleton.

Mayor Lovett gave an overview of the Council's priorities/concerns as they pertain to the current legislative session (as presented in the Council packet): Affordable Housing, Homelessness, Potential Revenue Shortfalls/Downshifting, Broadband Expansion, and Capital Improvements. Since she wrote the list, there are three pieces of legislation that are of concern and that the Council would like to see supported during the legislative process, and that is anything that deals with the expansion of incentives to develop affordable quality housing: HB586, relative to training and procedures for zoning and planning boards and relative to financial investments and

incentives for affordable housing development; HB154 relative to community revitalization tax relief incentives (expansion of RSA 79-E); and HB588 relative to building codes for tiny houses.

Rep. Merchant asked where the Council stands on tiny houses. Mayor Lovett said the Council has not discussed this. Without building code guidance, that raises concerns. Rep. Merchant asked if the Council would have a discussion about this.

Mayor Lovett talked about Potential Revenue Shortfalls/Downshifting. Historically, Claremont hasn't had the money to do the infrastructure projects that are needed. The City is dealing with a comprehensive compensation study to try to deal with some of the issues the City is having regarding salaries that are not competitive throughout the region. There are positions that have not been filled because the City doesn't have the funds to fill them. She talked about the reduced assumed rate of return for the NH Retirement System. The employer will pay more into the retirement system. She talked about SB72 relative to a state share of retirement system contributions by employers; HB274 relative to payment by the state of a portion of retirement system contributions of political subdivision employers; and HB390 relative to the amortization of retirement system unfunded accrued liability. The increased cost for the School and City combined is about \$400,000. The increase of the employer's contribution is about \$244,000 for the City and \$150,000 for the School. The employee and the employer pay into the system. The state does not contribute at all.

Mr. Morris said when the cities were asked to join the retirement system, the state agreed to pay 35% into it and now the state pays nothing.

Sen. Prentiss said she signed onto SB72 because it was working to restore part of the state's portion. She would be interested in continuing the dialogue about this.

Mayor Lovett said if the education funding is based on enrollment numbers, this year is an anomaly because of the pandemic. Sen. Prentiss said there are two bills on the Senate side that will address this. They are seeking to restore the aid to the level of last year.

Mayor Lovett said broadband expansion is important due to learning and/or working remotely. She said that anything that helps with infrastructure improvements would be greatly appreciated.

Mayor Lovett said that HB439 relative to the powers of city councils, is to limit the powers of city councils. She said this is not what is needed. Council hasn't had a chance to discuss it. Councilor Koloski doesn't agree with it. Every community is different. Rep. Merchant said he spoke to the bill's sponsor and the reason for it is because in Nashua, they use this to support the mask mandate. Mayor Lovett said the position of the Council is that they don't like this bill.

Mayor Lovett said HB315 relative to the aggregation of electric customers, would stop all the work that has been done. The Council hasn't had chance to discuss this. The Council has set up an aggregation committee. Councilors agreed that Mayor Lovett should send a letter not in support of HB315.

Rep. Cloutier said he believes the House will vote on the state budget in early April. He suggested having another meeting at the end of March or early April to discuss the state budget. He believes crossover is April 8.

CITY MANAGER'S REPORT (Continued)

Councilor Koloski said when people submit complaints/comments online, they are concerned about who is receiving them. Mr. Morris said he can look at it and possibly add his email.

Mr. Morris said as of yesterday Claremont is down to 63 active COVID cases. The infection rate has gone from 1.34% to .93% as of yesterday.

- **COVID-19 Update**

- In order to continue to decrease these numbers in Claremont, we must continue our efforts to control the spread of the virus. If people stay at home as much as possible, social distance and wear masks when in public, maintain hand hygiene and sanitization efforts, the sooner we may be able to start the reduction in numbers.

Vaccinations:

The City is completing the process of having our first responders vaccinated. On January 22, 2021, all New Hampshire residents 65 years of age and over, those at high medical risk, and certain professions listed below will be eligible to register to get their vaccinations at www.vaccines.nh.gov or by calling 211. Mr. Morris said moving forward that a few of the City's firefighters will help with the vaccinations.

Councilor Contois asked regarding blight, if any corrective action has been taken on two burned houses on Dennison Avenue and on Myrtle Street. Mr. Morris said he can check into that.

CITIZEN'S FORUM

Rebecca Mackenzie said regarding HB315 relative to the aggregation of electric customers, that she hopes it doesn't go very far. She is a member of the Energy Advisory Committee and they have room for a Councilor on that Committee. She also invited the public to join.

Funds Transfer (Compensation)

A motion was made by Councilor Contois to take the Funds Transfer (Compensation) off the table. There was no second. Motion failed.

Resolution 2021-20 City Hall Boiler Repair – Public Hearing

WHEREAS, City Hall, the Opera House, City Clerk's office, Police Department and Claremont District Court are heated by two oil fired commercial boilers that are located in the basement of City Hall; and

WHEREAS, this past August during routine annual cleaning, it was noted that City Hall Boiler #2 would require being re-sectioned, thoroughly cleaned, and re-gasketed.

NOW THEREFORE BE IT RESOLVED to raise and appropriate the sum of up to \$10,500; to be taken from fund balance with no impact on the tax rate and;

BE IT FURTHER RESOLVED that the City Manager, or his designees, are hereby authorized to undertake all actions and execute all documents as may be required to implement this resolution. *(2/3 vote required)*

Mr. Morris said at the last meeting Council was concerned about the wording. He spoke with the City Auditor and she recommended that the resolution be changed so that the funds would be taken from fund balance. He said he discussed this with Attorney Tanguay.

A motion was made by Assistant Mayor Damren and seconded by Councilor Stone to adopt Resolution 2021-20 City Hall Boiler Repair.

Assistant Mayor Damren read the resolution into the record.

Mayor Lovett opened the public hearing. No one spoke. She closed it.

Roll call vote:

O'Hearne - yes

Girard - yes

Sweetser - yes

Damren - yes

Matteau - yes

Koloski - yes

Contois - yes

Stone - yes

Lovett - yes

Motion carried 9-0.

NEW BUSINESS

Capital Improvements Plan

Councilor Matteau is the Council's representative on the Claremont Planning Board member. She said annually the Planning Board works with City Staff to update the Capital Improvements Plan (CIP) to make sure it is consistent with the Master Plan.

Nancy Merrill, Planning and Development Director, said the CIP creates a roadmap for the City in terms of projects that might be considered for the operating budget and what might be prioritized for grant potential. The City is always looking for grants and this shows where the needs are. She said the general fund for this is \$29,364,932. When you deduct other sources of

funds, that number is \$23,554,000. In both cases, the amount of funds for highway is \$21,450,000. There is an additional \$10,580,000 for water and \$14,550,000 for sewer.

Mayor Lovett brought up the fact that there was nothing in the CIP for the Library exterior nor the City Hall dome. Ms. Merrill said those items were not brought to the CIP Committee. However, they can be taken back to the Planning Board to do a supplemental report to the Council.

Mayor Lovett asked about installation of new sidewalks (i.e., on Charlestown Road). Ms. Merrill said she can check to see if that has been included in road work for Charlestown Road.

Mayor Lovett asked about capturing equipment needs for all Firefight and On-Call Firefighters. Mr. Morris said that replacement of turnout gear does not fall into the CIP. He will check with the Fire Chief to make sure there is a plan for replacement.

Councilors would like to see a plan for vehicles for the next 5 years.

Councilors asked to have funds in the department budgets to replace equipment in case grants are not available.

A motion was made by Assistant Mayor Damren and seconded by Councilor Matteau that WHEREAS the Claremont Planning Board, pursuant to RSA 674:7, has prepared and approved a Capital Improvement Plan for fiscal years 2022-2027, and now desires to submit its recommendations to the Mayor and City Council for consideration as part of the Council's annual budget review process, the Claremont City Council hereby accepts the fiscal year 2022-2027 Capital Improvement Plan as approved on January 11, 2021 by the Claremont Planning Board. The Claremont City Council hereby authorizes the City Manager or his designees to incorporate the recommendations contained in the fiscal year 2022-2027 Capital Improvement Plan into the annual budget review process and authorizes the Claremont Planning Board to provide updates to the Capital Improvement Plan on an annual basis to maintain and improve the City's credit rating and fiscal health.

Roll call vote:

O'Hearne - yes

Girard - yes

Sweetser - yes

Damren - yes

Matteau - yes

Koloski - yes

Contois - yes

Stone - yes

Lovett - yes

Motion carried 9-0.

Donation Policy Discussion

Donations

This section is for the purpose of setting guidelines and limitations of cash and non-monetary donations received by the City of Claremont.

Monetary Donations:

The Claremont City Council authorizes the City Manager or his/her designee to apply, accept and expend, without further action from the City Council, unanticipated revenue from State, Federal, or other governmental units or from private sources of up to \$10,000 in accordance with RSA 31:95-b.

Unanticipated monies in an amount over \$10,000 may only be accepted by a majority vote of the City Council after a duly noticed public hearing.

Personal Property Donations:

The Claremont City Council authorizes the City Manager or his/her designee to accept gifts of personal property with a value of up to \$5,000, other than land, which may be offered to the City of Claremont for any public purpose in accordance with RSA 31:95-e.

Personal Property, with a value over \$5,000 may only be accepted by a majority vote of the City Council after a duly noticed public hearing.

No acceptance of any personal property under the authority of this section shall be deemed to bind the City to raise, appropriate or expend any public funds for the operation, maintenance, repair, or replacement of such personal property.

Land donation:

All land donated to the City of Claremont must be accepted by a majority vote of the City Council after a duly noticed public hearing.

Councilor Stone said the Policy Committee had discussed this with the City Manager.

Mr. Morris said previously that Council had adopted RSA 31:95-b in regard to cash donations.

Councilor Girard would like it added that when a donation is received, Council is notified.

Councilor Koloski is not in favor as written. He would like the amount dropped to \$500. Without coming to the Council, there is the loss of exposure and acknowledgement to the donor, as well as recording and acceptance of the donation.

Mr. Morris recommended that the Council determine the dollar amounts and then send this to legal Counsel.

This will be added to the February 24th Council agenda.

Council Goals Discussion

Mayor Lovett asked Councilors to list their top three items to work on.

Mr. Morris said it is important to report on these items annually and they need to be measurable. Setting goals early in the year gives focus to the budget.

There was a discussion about a strategic planning session that happened last year before COVID-19 hit. It is believed that former Councilor Abigail Kier kept the notes of that session. Mr. Morris will reach out to her to see if he can get that information.

Councilors would like Department Head input, and suggested another place to look for guidance is the Master Plan.

Councilor Koloski's three goals:

1. Decrease tax rate – top goal
2. Blight – get to the properties before they are run into the ground
3. Economic development
 - a. Identifying sections of the community as full neighborhoods
 - b. Water & sewer doesn't extend to some areas of the community and putting them in is cost prohibitive
 - c. City-owned lots along the river – not sure they should be parks
 - d. TIFD along Charlestown Road – it has drainage issues

Councilor Matteau's three goals:

1. Stabilize tax rate
2. Blight & housing – identifying specific neighborhoods or corridors into the City
3. Infrastructure is a big concern – roads have to be a priority

Councilor Sweetser's three goals:

1. Regarding blight, there needs to be focus on getting the lead out of the buildings
2. Wants to focus on the City's strategic spending to bring in productive businesses and citizens
 - a. Need to focus on arts and recreation to make people want to come and stay here
3. Safer housing

Councilor Contois asked regarding blight, mercantile inspections, and code enforcement, if two inspectors are enough. Mr. Morris clarified that the mercantile and school inspections are done by the Fire Department. Depending on how we move forward, we may have to look at more people.

Councilor Stone asked how many court actions were brought forward in 2020. Mr. Morris said the City is in the middle of one now and there may be a couple more soon. Each Court action takes quite a bit of time.

Mayor Lovett's three goals:

1. Housing is huge. If you don't have housing that is quality and safe, you have a lot of other issues that demand taxpayers' money
 - a. Address blight
2. Environmental/energy issues. Industries that will flourish will be tied to energy.
3. Infrastructure

Mr. Morris said regarding Councilor Stone's question, three or four houses that the City is moving toward Court action on have changed hands and are being brought up to code at this time

Councilor Sweetser asked about the process for properties that were sold with reverter clauses. Mr. Morris said the reverter clauses are two-year clauses and they are in the system to be looked at, at that time.

Mayor Lovett will type up the focus areas listed this evening and then Council can identify the goals under each area.

Councilor Matteau would like to see the outcome of the previous strategic planning session before going into the next discussion.

Mayor Lovett said Council Goals Discussion is on the February 10 Council agenda.

FUTURE AGENDA ITEMS AND DIRECTIVES

Assistant Mayor Damren would like on the next meeting, or the one after that, to bring Funds Transfer (Compensation) off the table.

Assistant Mayor Damren would like to have a discussion regarding the Paypoint HR Salary Study at a future meeting. Council needs to consider what it wants to do with it.

Councilor Sweetser, regarding lead poisoning, wants to discuss what is being done to inspect the inside of buildings. In the future, when someone comes before the Council for RSA 79-E and it's a multi-family building, she thinks the Council should consider whether or not that building is going to be made safe for children. Mayor Lovett said there is a lead update on the next Council agenda.

Mr. Morris said regarding Dennison Avenue and Myrtle Street that he was notified by the Building Inspector, Steve Coombs, that a permit has been approved for demolition of Dennison Avenue and a permit is being processed to demolish Myrtle Street.

Councilor O'Hearne said that a couple of residents have questioned the shortened hours in Central Collections. He asked if because of the shortened hours in morning, the office can be open during lunch. Mr. Morris said the shortened hours were set up during COVID in order to have time to process the online business. He will discuss this with the City Clerk.

Councilor Koloski would like to revisit the City Staff's feeling of a TIFD on Charlestown Road. He would like to know what that would look like.

Mr. Morris said that it looks like there are not enough properties available on Charlestown Road to support a TIFD, but they can look at some side roads.

Councilor Koloski would like to identify neighborhood hubs for housing development.

Council Koloski asked to have old Council minutes added to the new website.

CONSULTATION WITH LEGAL COUNSEL

None

ADJOURNMENT

At 9:11 p.m., a motion was made by Councilor O'Hearne and seconded by Assistant Mayor Damren to adjourn.

Roll call vote:

O'Hearne - yes

Girard - yes

Sweetser - yes

Damren - yes

Matteau - yes

Koloski - yes

Contois - yes

Stone - yes

Lovett - yes

Motion carried 9-0.

Respectfully Submitted,

Dorée M. Russell
Clerk to the Council